



POLICE DEPARTMENT

January 15, 2015

MEMORANDUM FOR: Police Commissioner

Re: Detective Willie Johnson
Tax Registry No. 925519
79 Detective Squad
Disciplinary Case No. 2014-11359

The above-named member of the Department appeared before me on December 3, 2014, charged with the following:

1. Said Detective Willie Johnson, on or about April 23, 2013, at approximately 1345 hours, while assigned to the Brooklyn North Narcotics command and on duty, in the vicinity of [REDACTED] Kings County, abused his authority as a member of the New York City Police Department, in that he questioned Person A, without sufficient legal authority. P.G. 212-11, Page 1, Paragraph 1 STOP AND FRISK
2. Said Detective Willie Johnson, on or about April 23, 2013, at approximately 1345 hours, while assigned to the Brooklyn North Narcotics command and on duty, in the vicinity of [REDACTED], Kings County, abused his authority as a member of the New York City Police department, in that he threatened to arrest Person A without sufficient legal authority. P.G. 208-1, Page 1, Paragraph 3
LAW OF ARREST

The Civilian Complaint Review Board (CCRB) was represented by Vivian Ceden, Esq. Respondent was represented by Michael LaCondi, Esq. Respondent through his counsel entered a plea of Not Guilty to the subject charges. CCRB called Gerard Toumey as a witness and entered into evidence the recorded CCRB interviews of Person A and his sister, Fred. Respondent called Detective David Solmonsohn as a

witness and testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

After evaluating the testimony and evidence presented at the hearing, and assessing the credibility of the witnesses and hearsay declarations, this tribunal finds that there was insufficient evidence to support a finding that Respondent engaged in misconduct by questioning Person A. Accordingly, Respondent is found Not Guilty of Specification 1. The preponderance of the credible evidence did establish that Respondent abused his authority and engaged in misconduct by wrongfully threatening to arrest Person A. Accordingly, Respondent is found Guilty of Specification 2.

FINDINGS AND ANALYSIS

The following facts are undisputed. Starrett City is a large, federally subsidized housing complex in Brooklyn with its own Public Safety Office. It is Starrett City's practice to seek housing court orders barring certain individuals who have engaged in narcotics trafficking, and other specified felonies, from its residential areas. Affected individuals are personally served with court stipulations only after they are signed by a judge. Its Public Safety Office administers compliance. Housing court orders barring individuals from Starrett City do not apply to the public space occupied by the Starrett City Shopping Mall. In 2013, no housing court order had been issued prohibiting Person A, the complainant in this case, from entering Starrett City. (Tr. 14-16, 19, 50)

Respondent and Person A both grew up in Starrett City. In fact, Respondent was at one point person A's counselor in summer youth camp. Their current relationship, however, is quite acrimonious. Person A has a history of criminal convictions. On three separate occasions between 2007 and 2009, he pled guilty to criminal possession of a

controlled substance and in 2012 he pled guilty to assault in the third degree. Respondent was involved in at least two arrests, one of which occurred in the hallway of his [REDACTED] Starrett City apartment. On another occasion Respondent participated in a buy and bust operation that culminated in Person A ramming his vehicle into Respondent's police car. Person A's family, in turn, has filed a number of CCRB and IAB complaints against Respondent. (Tr. 22-23, 47-49, 52-53, 56-57; CCRB Exs. 2, 4)

On April 23, 2013, Respondent and his partner, Detective David Solmonsohn, were assigned to Brooklyn North Narcotics within the confines of the 75 Precinct. At approximately 1345 hours, they went to Armando's Pizzeria at the Starrett City Shopping Mall. As Respondent stood by the pizzeria doorway, he saw Person A eating at the counter. He called Person A over to the door and, in sum and substance, asked, "Are you even supposed to be here?" Person A walked to the doorway and replied, "Why do you bother me?" Respondent countered, "Why are you mad at me you rammed me with a car." A discussion ensued during which Respondent reminded Person A that he had knowledge of his criminal activity. Person A retorted that he was "behaving" and "staying out of trouble." Respondent then told Person A that he could be arrested for impeding pedestrian traffic because he was standing in the pizzeria doorway. The conversation ended when Person A walked back into the pizzeria. (Tr. 26, 30-32, 34, 46-47, 51-52, 58, 72-75; CCRB Ex. 2)

a. Specification 1: Questioning Without Legal Authority

CCRB argued that Respondent abused his authority as a member of the New York City Police Department by questioning Person A and asking, "Are you even supposed to be here?" as he was eating pizza in a public establishment. It is further contended that

Respondent had no legal authority to make this inquiry and that he harassed Person A based solely on personal animosity. This tribunal acknowledges the obvious hostility between Respondent and Person A and notes that as a uniformed member of service it is Respondent's responsibility to engage in a professional manner and maintain his objectivity when interacting with all members of the public, including those he personally dislikes. Nonetheless, the record presented in this case supports a finding that Respondent did not engage in misconduct when he inquired about Person A's presence at the Starrett City Shopping Mall.

As set forth in *People v. DeBour*, 40 N.Y.2d 210, 352 N.E.2d 562 (1976):

This case raises the fundamental issue of whether or not a police officer, in the absence of any concrete indication of criminality, may approach a private citizen on the street for the purpose of requesting information. We hold that he may. The basis for this inquiry need not rest on any indication of criminal activity on the part of the person of whom the inquiry is made but there must be some articulable reason sufficient to justify the police action which was undertaken.

This tribunal finds that the question Respondent asked Person A was supported by an objective credible reason and constituted a request for information, the least obtrusive level of inquiry under *DeBour*.

This tribunal credited Respondent's explanation for his initial interaction with Person A. Respondent credibly testified that Starrett City management had advised him that they had sought and obtained housing court orders to bar certain persons with drug convictions from their complex. At 1345 hours on the day at issue, he saw both Person B and Person A at Armando's Pizzeria, which is located within the Starrett City Shopping Mall. Respondent knew that both had prior arrests for drug transactions that had occurred within Starrett City because he had participated in their arrests. This

tribunal believed Respondent's testimony that he approached Person B and Person A because he was "unsure" whether Person B and Person A were on the Starrett City management "list" of individuals barred from the complex. He approached both individuals and asked a similar question to find out whether they were authorized to be in the area.

The factors articulated by Respondent constituted an objective and credible justification for a police officer to request information. First, although housing court orders can only bar persons from Starrett City's residential areas, the Shopping Mall is attached to the residential buildings. Thus, retail establishments can potentially be yards away from residences. A police officer making an inquiry when a person is in such close proximity to a potentially banned area can be a reasonable police action, even if it is a public space. Second, Respondent's erroneous statements that Starrett City had a "list" of "undesirables" or a "rule" barring those arrested for drugs does not contradict the fact that Starrett City Public Safety administers and keeps track of housing court orders restricting persons from certain premises. Whether management has a technical "rule" or keeps an actual "list" of banned individuals or not, the existence of these court orders supports Respondent's reasoning for seeking clarification and making the initial inquiry. Third, Respondent had first-hand knowledge of Person A's criminal record which included convictions for crimes that could potentially exclude him from parts of the complex. Respondent should not be forced to ignore this knowledge in the execution of his responsibilities. In sum, under these circumstances, Respondent's initial act of asking Person A a question to clarify whether he was permitted in the Starrett City complex was permissible and did not constitute sanctionable misconduct.

In making this determination, it is important to note that Respondent's interaction with Person B belies CCRB's argument that Respondent directed his initial inquiry to Person A merely to harass him. As confirmed by Respondent's partner, Person B was standing by the doorway when Respondent approached and asked whether he should be on the premises. This is significant because Starrett City Public Safety confirmed that a court order had been issued against Person B which banned him from certain residential areas. (Tr. 19, 26-27, 45-47, 49-50) It is within this context that Respondent then called Person A to the doorway to ask a similar question. Given these circumstances, he was justified in doing so. Accordingly, Specification 1 is dismissed.

b. Specification 2: Threaten Without Legal Authority

It is uncontested that during their interaction, Respondent told Person A that he could be arrested for impeding pedestrian traffic because he was standing in the doorway of the pizzeria. CCRB argues that Respondent abused his authority by threatening to arrest Person A. This tribunal agrees.

Although the initial inquiry was justified, Respondent engaged in misconduct when he issued this threat. Respondent's testimony is that Person A became "belligerent" and that as he became "angrier" Respondent "informed" him that he could be arrested for blocking the pizzeria doorway. (Tr. 51-52) I did not credit Respondent's statement that this was a merely informational statement and not a threat. First, Respondent's partner, Detective Solmonsohn, contradicted Respondent's testimony that Person A became "belligerent." In fact, Solmonsohn testified that he did not "remember anyone being hostile" during the interaction between Respondent and Person A. (Tr. 29) Second, it is uncontested that Person A was at a counter eating pizza when Respondent called him to

the doorway. It was gratuitous for Respondent to turn around and tell Person A that he could be arrested for joining him at the very spot that Respondent called him to. These factors led me to conclude that this assertion was an unwarranted threat to Person A and not, as Respondent later claimed, a point of information. Accordingly, Respondent is found guilty of the charge set forth in Specification 2.

This tribunal notes that during their CCRB interviews, both Person A and his sister made claims that Respondent made additional threats toward Person A and/or other members of their family. This tribunal could not credit these hearsay statements. Where, as here, the hearsay evidence is controverted, a fact finder must very carefully scrutinize the nature and reliability of the out of court statement. *In re Matter of 125 Bar Corp. v. State Liquor Authority of the State of NY*, 24 N.Y.2d 174 (1969). Several factors weighed against the reliability of the assertions made by Person A and his sister during their CCRB interviews. Many of their statements were too generalized and imprecise to credit. There were also factual inconsistencies in their versions of events that impacted on their reliability. For example, Person A said that the incident ended when he went back into the pizzeria and finished eating his pizza. His sister claimed that the incident ended when she intervened and took her brother outside. Accordingly, I limit my finding of misconduct to the threat Respondent made to arrest Person A for impeding pedestrian traffic.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). The CCRB sought a penalty of five vacation days for the misconduct alleged in Specifications 1 and 2.

Respondent, however, was only found guilty of Specification 2. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

Respondent was appointed to the Department on March 1, 2000. He is a very active detective with good evaluations. This is, however, Respondent's fourth substantiated CCRB complaint. The CCRB complaints substantiated in 2004, 2009 and 2011 were all for unwarranted abuses of authority and led to instruction. As an experienced detective and law enforcement professional, Respondent should have known that he was using threatening language without sufficient legal authority -- particularly because he caused the individual at issue to be in the physical location he later determined to be unlawful. Given Respondent's CCRB history, I recommend the forfeiture of three vacation days as the appropriate penalty.

Respectfully submitted,



Rosemarie Maldonado
Deputy Commissioner of Trials

APPROVED

FEB 17 2015

WILLIAM J. BRATTON
POLICE COMMISSIONER

POLICE DEPARTMENT
CITY OF NEW YORK

From: Deputy Commissioner Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
DETECTIVE WILLIE JOHNSON
TAX REGISTRY NO. 925519
DISCIPLINARY CASE NO. 2014-11359

Respondent was appointed to the Department on March 1, 2000. His last three annual evaluations were as follows: he received an overall rating of 4.0 "Highly Competent" in 2014, a 4.5 "Highly/Extremely Competent" in 2013, and a 4.0 "Highly Competent" in 2012. He has 11 medals for Excellent Police Duty and two medals for Meritorious Police Duty. He has made 687 arrests: 323 felonies and 359 misdemeanors.

[REDACTED]

From May 10, 2002 to September 9, 2003, he was placed on Level I Force Monitoring as a result of Negative Performance/Behavior. From March 12, 2008 to March 12, 2010, he was placed on Level I Force Monitoring for receiving three or more CCRBs in a one-year period. From March 12, 2010, to September 12, 2011, he was placed on Level II Force Monitoring as a result of receiving additional CCRBs.

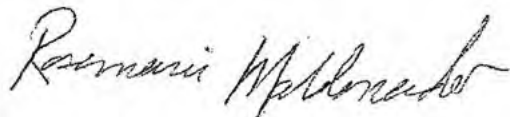
Between 2001 and 2013, Respondent received [REDACTED] CCRB allegations. [REDACTED]

[REDACTED] four were substantiated, [REDACTED]

[REDACTED] He has no prior formal disciplinary record.

For your consideration.

Respectfully submitted,



Rosemarie Maldonado
Deputy Commissioner of Trials